

served on the Defendant and all parties and was filed with the Court on April 21, 2026.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. section 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Defendant Sterling Logistics' Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Defendant Sterling Logistics'** Counsel to be relieved as counsel of record. This motion is **granted**.

The Court will re-execute and submit a Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053), listing the next dates scheduled in the case. The withdrawal is effective upon Ramin Mozaffar filing proof of service of signed order on Defendant Sterling Logistics and all parties.

6. 9:00 AM CASE NUMBER: C24-01746
CASE NAME: JORDAN MOUTON VS. RYAN BUENAFLO
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL
INTERROGATORIES
FILED BY: MOUTON, JORDAN
TENTATIVE RULING:

Continued by the parties.

7. 9:00 AM CASE NUMBER: C24-01746
CASE NAME: JORDAN MOUTON VS. RYAN BUENAFLO
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR
PRODUCTION OF DOCUMENTS
FILED BY: MOUTON, JORDAN
TENTATIVE RULING:

Continued by the parties.

8. 9:00 AM CASE NUMBER: C24-02797

CASE NAME: RIGOBERTO SOLIS VS. JOSE CUEVAS

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: LU, VINH

TENTATIVE RULING:

Before the Court is an unopposed demurrer by defendant Vinh Lu (Defendant) to the complaint filed October 17, 2024.

A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (Code Civ. Proc., § 430.40.)

Defendant's demurrer is based on the argument that the action is barred by a two year statute of limitations for personal injury claims set forth in Code of Civil Procedure § 335.1.

The complaint filed **October 17, 2024** alleges that the incident occurred on **October 12, 2024**. Defendant argues that this is a typographical error, inasmuch as the police report from the incident notes the date of the collision as October 12, 2022. Defendant requests that the court take judicial notice of the occurrence date as listed in a police report, which they attach as Ex. B to a request for judicial notice.

The court declines the Defendant's request for the court to take judicial notice of the date of the motor vehicle accident as listed in the police report attached as Exhibit B to the Request for Judicial Notice. Although in ruling on a demurrer courts may take judicial notice of files in other judicial proceedings this does not mean that the courts take judicial notice of the truth of factual matters asserted therein. (*Beckley v. Reclamation Board* (1962) 205 Cal.App.2d 734, 741 (declining to take judicial notice of "official" engineering reports of a California governmental commission). The court in *Day v. Sharp* (1975) 50 Cal.App.3d 904 explained,

There exists a mistaken notion that this means taking judicial notice of the existence of facts asserted in *every document* of a court file, including pleadings and affidavits. However, a court *cannot* take judicial notice of *hearsay allegations* as being true, just because they are part of a court record or file. A court may take judicial notice of the *existence* of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.

Day, 50 Cal. App. 3d at 914 (Emphasis in original.)

This well established principle extends to police reports. A court may not take judicial notice of facts described in a police report in considering a demurrer. *Ramsden v. Western Union*

(1977) 71 Cal. App. 873, 878-79 (declining defendant's request for judicial notice of facts in arrest report).

Accordingly **the demurrer is overruled in its entirety**. Defendant must file a responsive pleading within 15 days of service of notice of entry of this order.

9. 9:00 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL
FILED BY: JENKINS, MICHAEL MAURICE
TENTATIVE RULING:

The unopposed motion of David A. Melton and Heather Kelly-Cavanaugh to be relieved as counsel for Defendant Michael Jenkins is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§ 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Michael Jenkins' Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Defendant Michael Jenkins' Counsel** to be Relieved as Counsel of Record. This motion is **granted**.

Counsel is ordered to re-execute and submit a Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053), listing the appropriate next dates scheduled in the case. The withdrawal is effective upon David A. Melton and Heather Kelly-Cavanaugh filing proof of service of signed order on Defendant Michael Jenkins and all parties.